CITY OF ALBANY MEASURE O

O Shall the measure authorizing the Albany City Council to amend the residential voter requirements for zoning changes to the R-1 zoned areas of the City established by Measure D (enacted by the Albany voters in 1978), without majority neighborhood voter approval, after following noticed public hearing and zoning ordinance amendment procedures prescribed by State Law and the Albany Municipal Code, be adopted?	**YES**
	NO

CITY ATTORNEY'S IMPARTIAL ANALYSIS OF MEASURE O

AN ORDINANCE AUTHORIZING THE CITY COUNCIL TO ADOPT ZONING CHANGES IN THE SINGLE FAMILY RESIDENTIAL (R-1) ZONED AREAS WITHOUT MAJORITY NEIGHBORHOOD VOTER APPROVAL ESTABLISHED BY 1978 MEASURE D, AFTER FOLLOWING THE NOTICED PUBLIC HEARING AND ZONING ORDINANCE AMENDMENT PROCEDURES PRESCRIBED BY STATE LAW AND THE ALBANY MUNICIPAL CODE

In 1978, Albany voters approved Measure "D", a City initiative measure which, among other things, currently provides that any zoning changes to land in the City's single family residential (R-1) zoned areas only be permitted if at least fifty percent (50%) of the resident voters within three hundred (300) feet of the proposed change indicate their approval by signing a verified petition to that effect.

On June 1, 2026, the City Council voted to place Measure "O" on the November 3, 2026 General Municipal Election ballot. If approved by a majority of Albany voters, this Measure would amend the Albany Municipal Code to authorize the City to make zoning changes to land within the R-1 zoned areas from time to time, without majority neighborhood voter approval, after following noticed public hearing and zoning ordinance amendment procedures prescribed by State law and the Albany Municipal Code.

The stated purpose of this Measure is to allow greater flexibility for the City Council to respond to changing conditions and promote community goals to encourage additional housing availability and quality, as expressed in the adopted 2023-2031 General Plan Housing Element, the City Council's April 2025-2027 Strategic Plan and associated planning documents.

By placing Measure "O" on the ballot, the City complies with California Elections Code section 9217 which requires a majority of the Albany voters to approve the repeal or amendment of a previously voter-approved measure.

A "yes" vote on Measure "O" will authorize the City Council to make zoning changes within the R-1 zoned areas without majority neighborhood voter approval,

A "no" vote on Measure "O" will not authorize the City Council to make zoning changes within the R-1 zoned areas without majority neighborhood voter approval.

The above statement is an impartial analysis of Measure "O". If you desire a copy of the Measure, please call the City Clerk's Office at (510) 528-5710 and a copy will be mailed at no cost to you.

s/MALATHY SUBRAMANIAN
City Attorney

ARGUMENT IN FAVOR OF MEASURE O

Vote YES on Measure O to modernize Albany's zoning process, support housing availability, and restore transparent citywide decision-making. In 1978, Measure D created a special requirement for zoning changes in Albany's Residential Single-Family (R-1) areas: before the City Council could act, at least 50% of resident voters within 300 feet of a proposed change had to sign a verified petition. Nearly five decades later, that outdated rule makes it harder for Albany to respond fairly and effectively to today's housing needs.

Measure O does not change zoning. It does not approve any specific project, increase density, or alter development standards immediately. Instead, it allows the City Council to consider future updates through the same processes that apply across Albany. Processes that include robust noticed public hearings, public participation, environmental review when required, and ordinance amendment procedures that apply under State law and the Albany Municipal Code.

Albany has adopted a 2023–2031 Housing Element that commits the City to pursue repeal of Measure D's neighborhood petition requirement. The City Council's 2025–2027 Strategic Plan likewise calls for promoting housing availability and quality and developing a ballot measure to update the Council's authority to consider single-family zoning standards. Measure O implements those commitments.

Albany's housing challenges affect seniors, families, workers, renters, homeowners, and future generations. Decisions about citywide housing policy should be made through an open, inclusive public process—not controlled by a narrow petition requirement limited to voters living within 300 feet. Measure O expands participation, supports equitable housing opportunities in high-resource neighborhoods, and gives Albany the flexibility to meet legal obligations and community needs while preserving public notice, public hearings, and local accountability.

Vote YES on Measure O for a fair, modern, and accountable zoning process that helps Albany plan responsibly for housing today and in the future.

s/PEGGY MCQUAID
Mayor

s/JENNIFER HANSEN-ROMERO
Vice Mayor

s/PRESTON JORDAN
Councilmember

s/ROBIN LÓPEZ
Councilmember

s/JOHN MIKI
Councilmember

NO ARGUMENT AGAINST MEASURE O WAS SUBMITTED

FULL TEXT OF MEASURE O

ORDINANCE NO. 2026-02

AN ORDINANCE OF THE PEOPLE OF THE CITY OF ALBANY ADDING SECTION 20.100.070.D.5 TO CHAPTER 20 OF THE ALBANY MUNICIPAL CODE AUTHORIZING THE CITY COUNCIL TO ADOPT ZONING CHANGES IN THE SINGLE FAMILY RESIDENTIAL (R-1) ZONED AREAS WITHOUT MAJORITY NEIGHBORHOOD VOTER APPROVAL ESTABLISHED BY MEASURE D, ADOPTED IN 1978, AFTER FOLLOWING THE NOTICED PUBLIC HEARING AND ZONING ORDINANCE AMENDMENT PROCEDURES PRESCRIBED BY STATE LAW AND THE ALBANY MUNICIPAL CODE

WHEREAS, at the November 7, 1978 General Election, the Albany voters approved an initiative measure, which is commonly referred to as "Measure D"; and

WHEREAS, among the zoning provisions passed by Measure D, as originally codified in Section 404.9 of the Albany Municipal Code, is the requirement that any zoning changes in the single family residential (R-1) zoned areas only be permitted if at least fifty percent (50%) of the resident voters within three hundred (300) feet of the proposed change indicated their approval by signing a verified petition to that effect; and

WHEREAS, Program 1.B of the Albany 2023-2031 Housing Element, "Measure D Repeal," adopted by City Council in February 2023, provides for repealing provisions of Measure D requiring majority voter approval through a neighborhood petition prior to zoning changes to zoning in the R-1 District; and

WHEREAS, Goal 2 of the City Council's April 2025-March 2027 Strategic Plan is to "Promote Housing Availability & Quality" and the third objective under this goal is to "Develop [a] ballot measure to update the City Council's authority to consider changes to single family zoning standards" in reference to Measure D; and

WHEREAS, currently Measure D can only be repealed or amended by an ordinance adopted by the Albany voters; and

WHEREAS, the City Council has determined that the best option available to the City is to bring forward a ballot measure authorizing the City Council to modify the requirements for zoning changes within the R-1 zoned areas from time to time, without majority neighborhood voter approval, after following noticed public hearing and zoning ordinance amendment procedures prescribed by State law and the Albany Municipal Code; and

WHEREAS, the proposed measure, if approved by a majority of Albany voters, would allow greater flexibility for the City Council to respond to changing conditions and promote the community goals as expressed in the adopted General Plan and associated planning documents for encouraging additional housing availability and quality.

NOW, THEREFORE, THE PEOPLE OF THE CITY OF ALBANY ORDAIN AS FOLLOWS:

SECTION 1: CHAPTER 20 OF THE ALBANY MUNICIPAL CODE, IS HEREBY AMENDED TO ADD A NEW SECTION 20.100.070.D.5 AS FOLLOWS:

"20.100.070.D.5 The City Council is authorized to process zoning amendments in the single family residential (R-1) zoned areas without majority neighborhood voter approval mandated by 1978 Measure D.

After following procedures for City Council amendment of City Zoning Ordinances, including compliance with the California Environmental Quality Act and conducting duly noticed public hearings before the Planning and Zoning Commission and the City Council in accordance with State law and the Albany Municipal Code, the City Council may make zoning changes to property located in the R-1 zoned areas, without having to obtain the approval of at least fifty percent (50%) of the resident voters within three hundred (300) feet of the proposed change through signing a verified petition, as mandated by Measure D (enacted by the Albany voters on November 7, 1978)."

SECTION 2. RECITALS. The People of the City of Albany find that all Recitals contained in this Ordinance are true and correct and are incorporated herein by reference.

SECTION 3: CEQA FINDINGS. The adoption of this ordinance is exempt from the California Environmental Quality Act ("CEQA") because it can be seen with certainty that there is no possibility that the adoption of the proposed ordinance will have a significant effect on the environment. (CEQA Guidelines Section 15061(b)(3).) If approved by the voters, the proposed ordinance would authorize the City Council to make future zoning changes to the R-1 zoned areas without compliance with the neighborhood approval by petition requirements established by 1978 Measure D. However, any such future zoning changes would be preceded by compliance with CEQA as appropriate. The proposed ordinance, by itself, would not alter the zoning of any land or effect any changes in applicable zoning/land use regulations.

SECTION 4. SEVERABILITY. If any section, subsection, phrase, clause, sentence, or word in this Ordinance shall for any reason be held invalid or unconstitutional by a court of competent jurisdiction, it shall not nullify the remainder of this Ordinance but shall be confined to the article, section, subsection, subdivision, clause, sentence or word so held invalid or unconstitutional.

SECTION 5: EFFECTIVE DATE. This Ordinance shall be considered adopted on the date that the City Council declares the results of the election at which it was voted upon and shall be effective ten (10) days thereafter.

Ordinance No. 2026-02 was submitted to the People of the City of Albany at the November 3, 2026 General Municipal Election. It was approved by the following vote of the People:

YES: _____

NO: _____

Ordinance No. 2026-02 was thereby adopted by the voters at the November 3, 2026 election and took effect upon adoption of a resolution declaring the results of the election at a regular meeting of the City Council held on _____, 2026, by the following vote:

AYES:

NOES:

ABSENT:

I HEREBY CERTIFY that the foregoing is a true and correct copy of an ordinance duly and regularly adopted by the People of the City of Albany, California.

_____
ANNE HSU, City Clerk